designs



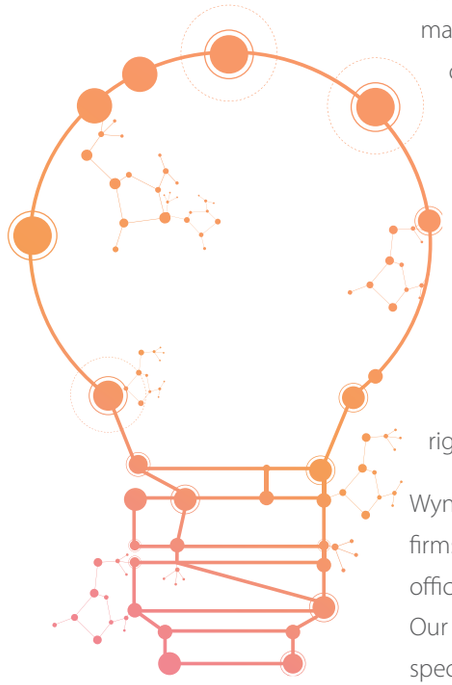
www.thecpd.group



www.wynne-jones.com

To ensure that your IP assets are fully protected and exploited, you need the right partner.

Your IP is too important not to be done properly



Intellectual Property (IP) rights, such as patents, trade marks, designs and copyright are assets, which can be licensed and sold. Additionally, strong IP rights can be used to stop others from using your IP, thereby protecting your market position. IP rights may also be used to leverage grants and financial assistance. Quite simply, the value of a business can be transformed by obtaining the right IP assets. To ensure that your IP assets are fully protected and exploited, you need the right partner.

Wynne-Jones IP is one of the longest standing firms of patent and trade mark attorneys, with offices in London, Cardiff, Cheltenham and Telford. Our attorneys have a wealth of experience across a spectrum of technical and business sectors, which means that we can match you with an attorney who specialises in IP that is relevant to your field.

IP services tailored to address issues facing start-up businesses

It's not an overstatement to say that getting the right IP advice in the early days of a business venture can mean the difference between success and failure. If your core idea or product is not properly protected then it's unlikely that you'll be able to stop another company copying it. You could lose your market position, regardless of whether you were the first to create or commercialise.

Similar problems can arise with company or product names. Having a company name registered at Companies House and/or as a domain name won't necessarily enable you to stop a competitor from using the same, or very similar, brand name and take advantage of the reputation you're building up.

There's also the question of whether you infringe another company's IP rights. Even if you came up with your idea, product or brand name completely independently, this doesn't mean you can avoid being sued for infringement of many types of IP rights if you fall within their scope.

Our IP solutions

Wynne-Jones IP offer free, structured consultations for start-up ventures. Whether you're already up and running, or still at the drawing board stage, we will give full consideration to the forms of IP protection that are right for you and how you can use them to maximise your chances of commercial success.

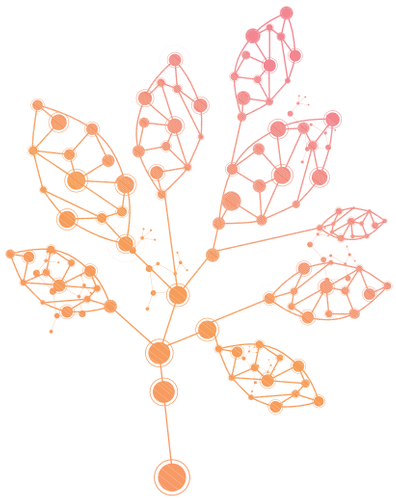
Topics covered can include how to protect your (current and future) concepts, products and brand names; investigating potential infringement risks, and licensing and other commercial negotiations involving IP.

We also discount some of our service charges for start-ups and have developed close links with a number of organizations, notably the Welsh Government, which can assist start-ups and new businesses with finance. We're also one of the few firms of IP attorneys who have opted into the UK IP Office funded scheme to provide free IP audits and related advice for businesses and start-ups.

What do we mean by design?

In intellectual property (IP) terms a design is any product design - commercial, industrial, technical - that has new features of visual appearance, whether they are from shape, contours, lines, colours, ornamentation or texture. Protection is given to the way the product, or a part of the product, looks.

Do I have to register my product design?



There is no compulsory requirement to register your product design, and both UK and EU law recognise certain unregistered design rights. However, by obtaining a registration the existence of your design is placed on a public register, thereby providing a searchable record for third parties. Having a registration will also enable you to identify the existence of your rights on your product. Both of these can provide a useful deterrent against copying. Furthermore, the UK has just introduced criminal sanctions against the copying of designs, providing further teeth to this useful right.

If I register my design in the UK do I get any protection overseas?

All IP rights, including designs, are territorial in nature, so if you register your design in the UK this gives you exclusive rights in the UK only. If you wish to protect your design in other countries you need to seek separate protection. Fortunately, if it is the EU you are interested in there is a single system for obtaining protection to cover the whole of the EU, which makes the process simpler and more cost efficient.

Can I see how sales go before I register my design?

In the UK and EU there are provisions for a 12 month "grace period" to allow you time to see how sales go before incurring the cost of obtaining registered protection. However this does not generally apply outside of the EU. So if you launch your product ahead of starting the registration process here, you will not generally be eligible for protection outside of the EU, and only in the EU if you act quickly in the first 12 months.

How long do rights last?

In the UK and EU registered design rights will last for a maximum of 25 years, with renewal fees payable every 5 years. The duration of rights vary in other countries around the world.

Can I register anything I want?

Needless to say there are restrictions as it would not be fair to obtain a monopoly in some circumstances. Excluded are designs that are not new or don't really differ from existing designs, material that is offensive or contains certain protected flags and international emblems, designs dictated solely by the product function, or features that have to have a specific design to fit an existing product, such as spare parts.

Isn't my product design covered by copyright?

Whilst the design drawings themselves will be subject to copyright, producing articles to design drawings is not an infringement of copyright (there are special rules relating to "artistic works"). There may be unregistered rights which exist in the design, but it is necessary to demonstrate copying and overall the rights are generally more limited than with registered designs.

London
Level 17,
Dashwood House
69 Old Broad Street
London EC2M 1QS
Tel: +44 (0) 2031 467 888
Fax: +44 (0) 1242 224 183
london@wynne-jones.com

Cardiff
Ground Floor,
Capital Building,
Tyndall Street
Cardiff CF10 4AZ
Tel: +44 (0) 2921 303 360
Fax: +44 (0) 1242 224 183
cardiff@wynne-jones.com

Cheltenham
2nd Floor
5210 Valiant Court
Gloucester Business Park
Gloucester GL3 4FE
Tel: +44 (0) 1242 267 600
Fax: +44 (0) 1242 224 183
cheltenham@wynne-jones.com

Telford
e-Innovation Centre
University of Wolverhampton
Priorslee
Shropshire TF2 9FT
Tel: +44 (0) 1952 930 123
Fax: +44 (0) 1242 224 183
telford@wynne-jones.com

Chartered & European Patent Attorneys and Trade Mark Attorneys
www.wynne-jones.com

CPD Accreditation Service
www.thecpd.group